

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
COREY HODGES a/k/a JEFFREY ALLRED,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER KATHLEEN
KELLY, SHIELD NUMBER 22150, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 101ST PRECINCT,Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Queens
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
229-11 113th Avenue
Queens Village, N.Y. 11429

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
March 5, 2018TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorney for Plaintiff
COREY HODGES a/k/a JEFFREY ALLRED
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER KATHLEEN KELLY,
SHIELD NUMBER 22150
101st Precinct
16-12 Mott Avenue
Far Rockaway, New York 11691

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
COREY HODGES a/k/a JEFFREY ALLRED,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER KATHLEEN
KELLY, SHIELD NUMBER 22150, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 101ST PRECINCT,**VERIFIED COMPLAINT**Defendants.
-----X

Plaintiff COREY HODGES a/k/a JEFFREY ALLRED by and through his attorneys,
TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW
YORK, POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, and SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT respectfully
alleges as follows:

1. Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
2. Defendant CITY OF NEW YORK maintains the New York City Police Department, including all the police officers thereof, a duly authorized police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction, control and supervision of the aforementioned municipal corporation, CITY OF NEW YORK.
3. Plaintiff COREY HODGES a/k/a JEFFREY ALLRED is a Black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
4. That at all times hereinafter mentioned, Defendant POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, was employed by Defendant CITY OF NEW YORK as a police officer.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, acted within the scope of her employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of her office as a police officer for said city and state.

7. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

8. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

10. That on October 31, 2016, at approximately 11:00 p.m., Plaintiff COREY HODGES a/k/a JEFFREY ALLRED exited a motor vehicle that was stopped at or near the intersection of Caffrey Avenue and Hurley Court in the County of Queens, City and State of New York (hereinafter the "INCIDENT LOCATION").

11. That at the aforementioned time and place, after exiting the motor vehicle, Plaintiff COREY HODGES a/k/a JEFFREY ALLRED was accosted by members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT.

12. That at the aforementioned time and place, Defendants POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, and SEVERAL UNIDENTIFIED POLICE

OFFICERS ASSIGNED TO THE 101ST PRECINCT repeatedly kicked, punched, tased, and otherwise physically assaulted Plaintiff COREY HODGES a/k/a JEFFREY ALLRED without cause or justification.

13 That, following the aforementioned unprovoked assault, Defendants POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT placed Plaintiff COREY HODGES a/k/a JEFFREY ALLRED and placed him under arrest

14. As a result of the foregoing, Plaintiff COREY HODGES a/k/a JEFFREY ALLRED sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

15. Plaintiff COREY HODGES a/k/a JEFFREY ALLRED repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

16. The level of force employed by Defendants POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT was objectively unreasonable, and in violation of Plaintiff COREY HODGES a/k/a JEFFREY ALLRED's constitutional rights.

17. As a result of the aforementioned conduct of Defendants POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT, Plaintiff COREY HODGES A/k/a JEFFREY ALLRED was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

18. Plaintiff COREY HODGES a/k/a JEFFREY ALLRED repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

19. Each and every individual Defendant police officer had an affirmative duty to intervene on Plaintiff COREY HODGES a/k/a JEFFREY ALLRED's behalf to prevent the violation of his constitutional rights and failed to intervene despite having had a realistic

opportunity to do so.

20. As a result of the aforementioned conduct of the individual Defendant police officers, Plaintiff COREY HODGES a/k/a JEFFREY ALLRED's constitutional rights were violated and he was subjected to excessive force, cruel and unusual punishment and sustained physical injuries.

AS AND FOR A THIRD CAUSE OF ACTION FOR MUNICIPAL LIABILITY

21. Plaintiff COREY HODGES a/k/a JEFFREY ALLRED repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

22. Defendants POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

23. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to (a) using force in an excessive, unreasonable, unnecessary and unjustified manner, and (b) using force with the purpose and intent of maliciously and sadistically punishing individuals in their custody.

24. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff COREY HODGES a/k/a JEFFREY ALLRED.

25. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff COREY HODGES a/k/a JEFFREY ALLRED as alleged herein.

26. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the

constitutional violations suffered by Plaintiff COREY HODGES a/k/a JEFFREY ALLRED as alleged herein.

27. Defendants POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT, while acting under the color of state law, was directly and actively involved in violating Plaintiff COREY HODGES a/k/a JEFFREY ALLRED's constitutional rights.

28. All of the foregoing acts by defendants deprived Plaintiff COREY HODGES a/k/a JEFFREY ALLRED of federally protected rights including, but not limited to, the right:

- A. Not to have cruel and unusual punishment imposed upon him;
- B. To receive equal protection under the law.

29. As a result of the foregoing, Plaintiff COREY HODGES a/k/a JEFFREY ALLRED is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Two Million Dollars (\$2,000,000.00)

WHEREFORE Plaintiff COREY HODGES a/k/a JEFFREY ALLRED demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER KATHLEEN KELLY, SHIELD NUMBER 22150, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 101ST PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Two Million Dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
March 5, 2018



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
COREY HODGES a/k/a
JEFFREY ALLRED
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that the Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with the Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
March 5, 2018


TRACIE A. SUNDACK